

24NWCV03704 24NWCV03704

County: los-angeles

Division: Civil Law and Motion

Department: R

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Case Number: 24NWCV03704 Hearing Date: August 27, 2026 Dept: R

#14

MEDINA v. VOLKSWAGEN

GROUP OF AMERICA.

CASE NO.: 24NWCV03704

HEARING: Thursday, August
27, 2026, at 9:30 AM

Defendant VOLKSWAGEN GROUP OF AMERICA's Motion for Leave to
Amend Defendant's Answer is GRANTED.

The Proposed First Amended Answer attached as Exhibit G to Aarica
D. Roberson's Declaration is NOT deemed filed and served as of
the date of the issuance of this Order. Defendant is ORDERED to FILE
and SERVE the First Amended Answer within 5 days of the date of the
Court's issuance of this Order.

Moving Party to give notice.

Background

On October 16, 2024, Plaintiff MERCY MEDINA ("Plaintiff")
filed this "lemon law" action against Defendants VOLKSWAGEN GROUP OF AMERICA
INC. ("Defendant") and DOES 1 through 10, inclusive.

Plaintiff's Complaint alleges the following causes of

action:

(1) Violation

of the Song-Beverly Act – Breach of Express Warranty and

(2) Violation

of the Song-Beverly Act – Breach of Implied Warranty

On August 3, 2026, Defendant filed the instant motion for leave to amend Defendant's Answer to include an additional "Release and Bar/Res Judicata/Claim Preclusion/Issue Preclusion" affirmative defense.

Legal Standard

California recognizes "a general rule of...liberal allowance of amendments..." (Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.) It has also long been recognized that "even if the proposed legal theory is a novel one, 'the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.'" (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) In light of great liberality employed when ruling on a motion for leave to amend, the court will not normally consider the validity of the proposed amended pleading since grounds for demurrer or motion to strike are premature. Thus, absent prejudice to the opposing party, courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial." (emphasis added.) (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.)

CRC Rule 3.1321(a) requires that a motion to amend must:

"[i]nclude a copy of the proposed . . . amended pleading . . . [and] state what allegations in the previous pleading are proposed to be [deleted and/or added], if any, and where, by page, paragraph, and line number, the [deleted and/or additional] allegations are located."¿

CRC Rule 3.1324(b) provides, as follows: "[a] separate declaration must accompany the motion and must specify: (1) [t]he effect of the amendment; (2) [w]hy the amendment is necessary and proper; (3) [w]hen the facts giving rise to the amended allegations were discovered; and (4) [t]he reasons why the request for amendment was not made earlier."¿

Discussion

Defendant's amendment relies on an October 19, 2022, Final Approval Order and Judgment entered with respect to a class lawsuit titled Michael Zhao, et al. v. Volkswagen Group of America, Inc., et al. ("Zhao Class Action").

On January 28, 2022, Defendant entered into a settlement agreement with the Zhao Class Action plaintiffs. The parties to the settlement agreement acknowledged and agreed that Defendant denied all allegations and claims with respect to both liability and damages, maintained that the Water Pump in the punitive class vehicles were not defective, that no applicable warranties (express or implied) were breached, that no common law duties or applicable statutes, laws, rules or regulations were violated, and that the Water Pumps were properly designed, tested, manufactured, distributed, marketed, advertised, warranted and sold. (RJN Ex. 2.)

On June 10, 2022, the appointed Settlement Administrator, mailed the Notice of settlement to Plaintiff who was identified as owning a 2018 Audi A5 vehicle that is part of the settlement. (Roberson Decl., ¶ 9, Ex. E.) The Court approved deadline for Class member to opt-out of the Class Settlement was June 25, 2022. (Id.) Plaintiff did not request exclusion from the class settlement. (Id.)

On April 7, 2026, Plaintiff served responses to written to Defendant's discovery and denied any involvement in the Zhao class action. (Roberson Decl., ¶ 4.) Defendant indicates that "Subsequently, I learned that Plaintiff is a class member that did not opt out of the settlement in a prior class action case..." (Roberson Decl., ¶ 8.)

The Court agrees with Plaintiff that Defendant does not specify when Defendant learned Plaintiff was bound by the Zhao decision.

However, the Court finds Defendant substantially complied with CRC Rule 3.1324(b). The proposed amended would add an affirmative defense for Res Judicata and is necessary given Zhao Class Action Settlement. Further, the Court finds the request was not made earlier because Plaintiff was still denying she was a member of the Zhao settlement class in April, 2026. Defendant also attests that subsequent to Plaintiff's November 7, 2025,

deposition, Defendant learned that, "Plaintiff is a class member that did not opt out of the settlement in a prior class action case." (Roberson Decl., ¶ 8.)

The policy favoring amendment is so strong that denial of leave to amend can rarely be justified: "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Plaintiff does not articulate prejudice here.

Conclusion

Defendant VOLKSWAGEN GROUP OF AMERICA's Motion for Leave to Amend Defendant's Answer is GRANTED.